CPC — The Story Notes

Code of Civil Procedure, 1908 · Limitation Act, 1963

All 5 units · one neighbour dispute, start to finish · by **lawsticker-ai.com**

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*Neighbour **D** builds a wall 3 ft into **P**'s plot — and never repaid the ₹6 lakh he borrowed. Follow P's suit from the plaint to summons, pleadings, trial, decree, execution, appeal and limitation — every part of the syllabus shows up as a scene.*

The cast

👨 **P** plaintiff, plot owner	🧔 **D** neighbour, defendant	👦 **M** P's son, 14	👵 **S** P's widowed sister	🤷 **T** tenant in the middle	🏛️ **Municipality** the State
👨‍⚖️ **Civil Judge** tries the suit	👩‍💼 **P's advocate** drafts the plaint	🧑‍💼 **D's advocate** files the defence	👮 **Process server** serves summons	👷 **Commissioner** measures the land	🏹 **You** the student

The story map (17 episodes)

Ep 0 — The Rulebook 📘
codification · features · S.2 words · jurisdiction kinds
Unit I

Ep 1 — The Wall 🧱
S.9 civil nature · bars · cause of action
Unit I

Ep 2 — Where Do I Sue? 🗺️
place of suing · S.21 · transfer
Unit I

Ep 3 — The Old Case 📜
sub judice · res judicata · foreign judgment
Unit I

Ep 4 — Who's in the Suit? 👥
parties · frame of suit · institution
Unit I

Ep 5 — Summons to Dubai ✈️
summons · service abroad · S.29
Unit I

Ep 6 — The Plaint 📄
pleadings · amendment · return · rejection
Unit II

Ep 7 — D Fights Back ⚔️
WS · set-off · counter-claim · S.89 · issues
Unit II

Ep 8 — The Empty Chair 🪑
appearance · ex parte · adjournments
Unit III

Ep 9 — Witnesses & Papers 🧾
witnesses · admissions · documents · affidavit
Unit III

Ep 10 — Stop Order & the Verdict ✋
injunction · receiver · commission · costs · decree
Unit III

Ep 11 — Making the Decree Work 🔨
execution · arrest · attachment & sale
Unit III

Ep 12 — Suing the Government 🏛️
S.80 · S.91 · S.92 · representative suit
Unit IV

Ep 13 — The Boy, the Sister, the Tenant 👦
minors · indigent · interpleader
Unit IV

Ep 14 — Before the Final Bell 🔒
incidental · supplemental · S.144–153
Unit IV

Ep 15 — Second Chances 🔁
appeals · reference · review · revision
Unit IV

Ep 16 — Too Late? ⏳
Limitation Act 1963
Unit V

How to read

- **O.VII r.11** — section / order
- S.9 — related provision
- yellow — exam keyword
- ⭐ golden rule — must-write line
- 🔧 purple box — amendment watch
- green box — case: story → held
- 📌 sticky — memory hook
- 🎬 — worked example
- comic strip — the scene to picture

Episode 0 The Rulebook

Before the story begins, the rulebook every character must follow.

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Substantive law gives the right (Contract Act, TP Act).



Procedure (CPC) is the road to enforce it.



Civil courts: from Junior Civil Judge to the Supreme Court.



One neighbour dispute will take us through the whole Code.

Codification of civil procedure — History

1859 first uniform Code → 1877 new Code → 1882 revised → 1908 present CPC (Act V) → 1976 · 1999 · 2002 big amendments

CPC 1908 in force 1 January 1909. Structure: 158 sections (the body — substantive provisions, changed only by Parliament) + 51 Orders in the First Schedule (the rules — procedure, which High Courts may amend).

★ Procedure is the handmaid of justice, not its mistress — rules are to help justice, not defeat it.

Principal features of the CPC

- consolidating & amending Act; procedure for all civil courts (except where special law applies)
- sections v Orders split (rule-making power to HCs, S.122)
- uniform hierarchy of civil courts · S.9 every civil suit triable unless barred
- pre-trial filters: S.80 notice, O.VII r.11 rejection, S.89 ADR
- time limits (1999/2002): 30 days summons, 30–90 days written statement, 3 adjournments, 30–60 days judgment
- inherent powers saved (S.151) · restitution (S.144) · appeals, review, revision

Words of S.2 (MCQ goldmine) — S.2

Word	Meaning
Decree 2(2)	formal expression of adjudication that conclusively determines rights in the suit — preliminary, final or partly; includes rejection of plaint & S.144 questions; excludes appealable order & dismissal for default
Judgment 2(9)	statement of the grounds of a decree or order
Order 2(14)	formal expression of a decision that is not a decree
Decree-holder 2(3)	person in whose favour a decree is passed
Judgment-debtor 2(10)	person against whom a decree is passed
Legal representative 2(11)	represents the estate of a deceased person (incl. intermeddler)
Mesne profits 2(12)	profits the person in wrongful possession received or might have received (minus his improvements)
Foreign court / judgment 2(5) (6)	court outside India not set up by Central Govt / its judgment

Decree — conclusive · rights in the **suit** · appealable as of right (S.96) · max one per suit (+ preliminary)

v/s

Order — not a decree · appealable only if listed (S.104, O.XLIII) · many in a suit

📌 Judgment = reasons · Decree = result · Order = everything else

Kinds of jurisdiction — S.6 · S.9 · S.15–20

Jurisdiction = power to hear & decide

- **Pecuniary** — money value (S.6)
- **Territorial** — place (S.16–20)
- **Subject matter** — kind of dispute
- **Original / Appellate** — first hearing / appeal

Also: exclusive v concurrent, general v special (Family Court, Rent Controller), inherent. Parties cannot confer jurisdiction by consent where the law gives none.

Kiran Singh v Chaman Paswan (1954)

story Suit undervalued; filed in a lower court; decided, then challenged in appeal.

held A decree without **inherent jurisdiction is a nullity**; but objections to pecuniary/territorial jurisdiction fail unless failure of justice (S.21, Suits Valuation Act S.11).

📌 P-T-S-O: Pecuniary · Territorial · Subject · Original

Every civil dispute enters the court through one door: S.9.

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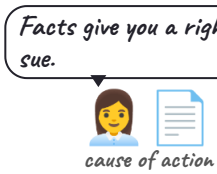
Neighbour **D** builds a wall 3 ft into **P**'s plot.



D also owes P ₹6 lakh lent in 2021.



Right to property + money = **suit of civil nature**.



Cause of action = bundle of facts.

Suits of civil nature S.9

Civil courts try all suits of a civil nature except those expressly or impliedly barred. A suit = a civil proceeding begun by a plaint (S.26).

Civil nature ✅	Not civil ❌
right to property, office, money, status, contract	purely religious rites or caste questions
right to worship / religious office (Explanation I) — even if it depends on rituals	political questions, recovery of voluntary payments
Explanation II: office even without fees or attached to a place	matters with an exclusive special tribunal

Express bar: a statute says "no civil court shall…" (Industrial Disputes Act, Rent Acts, RDDB/SARFAESI, Income Tax). **Implied bar**: from the scheme of a special law or public policy.

Dhulabhai v State of M.P. (1968)

- *story* — Tax levied under a State Act; civil suit for refund; Act barred suits.
- *held* — **7 principles**: exclusion not readily inferred; civil court still open if the tribunal acted outside the Act, against natural justice, or the Act is ultra vires.

Ganga Bai v Vijay Kumar (1974) — inherent right to sue unless barred by statute

Premier Automobiles v Kamlekar Shantaram (1976) — dispute created by the ID Act → only its machinery

Most Rev. P.M.A. Metropolitan v Moran Mar Marthoma (1995) — 'civil nature' is wide; religious office included

📌 All civil suits · unless express or implied bar · S.9

Cause of action O.II · O.VII r.1(e)

Every fact the plaintiff must prove, if traversed, to win the judgment — the bundle of facts giving a right to sue. It doesn't include the defence or the evidence.

🎬 **P's causes**

Wall built 3 ft inside P's plot on a date (trespass) + loan of ₹6 lakh unpaid after demand (money). Two causes, same parties → can be joined in one suit (O.II r.3).

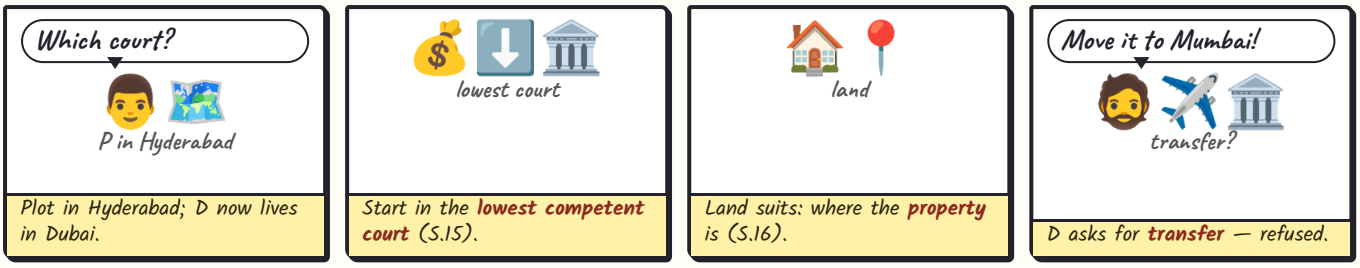
A.B.C. Laminart v A.P. Agencies (1989) — cause of action = bundle of facts; parties can choose one of two competent courts

📌 Cause of action = facts to prove, not evidence

Episode 2 Where Do I Sue?

Place of suing: the right court is chosen by money, land, and where the cause arose.

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Place of suing S.15–20

Section	Rule
15	institute in the court of the lowest grade competent
16	immovable property (recovery, partition, foreclosure, sale, rights, compensation): where the property is situated
16 proviso	relief obtainable through the defendant's personal obedience: where property is OR where defendant resides/works
17	property in several courts' limits: any of them
18	boundaries uncertain: any court, after recording
19	wrongs to person or movables: where wrong done OR where defendant resides (choice)
20	other suits: where defendant resides/works or cause of action arises (wholly or partly)

Explanation to S.20: a corporation resides at its principal office, or at a subordinate office where the cause arose.

🎬 *P's suit*

Wall → S.16 → Hyderabad court where the plot is. Loan → S.20 → where the loan was given (Hyderabad), even though D lives in Dubai.

Patel Roadways v Prasad Trading Co. (1991) — corporation sued where the subordinate office is, if cause arose there
Harshad Chimanlal Modi v DLF Universal (2005) — immovable property suit only where land is; consent can't confer
A.B.C. Laminart v A.P. Agencies (1989) — exclusive-jurisdiction clause valid between two competent courts

📌 Lowest · Land where it lies · Wrong where done or D lives · Rest where D lives or cause arose

Objections to jurisdiction S.21 · 21A

- → place of suing objection: raise in the court of first instance at the earliest (before issues) **and** show failure of justice — else not allowed in appeal/revision
- → same for pecuniary objection (S.21(2))
- → **S.21A**: no fresh suit to set aside a decree only on a place-of-suing objection
- → inherent lack of jurisdiction (subject matter) → nullity; can be raised any time

📌 Place & pecuniary: early + prejudice · subject matter: any time

Transfer of suits S.22–25

Section	Who / how
22	defendant may apply where the suit could be filed in two or more courts — at the earliest opportunity
23	which court decides: common appellate court / HC
24	general power: HC or District Court, on application or suo motu, at any stage — transfer, withdraw, retry
25	Supreme Court: from one State to another — 'expedient for the ends of justice'

Grounds: balance of convenience, reasonable apprehension of no justice, avoid conflicting decisions, women in matrimonial cases (usually transferred to the wife's place).

Kulwinder Kaur v Kandi Friends Education Trust (2008) — factors for transfer under S.24
Durgesh Sharma v Jayshree (2008) — only SC transfers across States (S.25), not a HC

📌 22 defendant asks · 24 HC/District suo motu · 25 SC across States

Episode 3 The Old Case

Two doctrines stop the same fight being fought twice: sub judice and res judicata.

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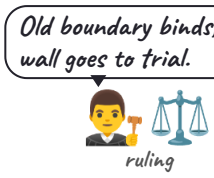
P's father sued D's father over the **same boundary** — and lost.



Same issue, decided finally → **barred**.



Encroachment by a **new wall** = a new cause.



Issue-by-issue test.

Res sub judice — stay of suit S.10

Court **shall not proceed with the trial** of a later suit where the **matter directly and substantially in issue** is also in issue in a **previously instituted suit** between the **same parties**, pending in a competent court **in India** (or one set up by the Centre outside India, or the SC).

→ **pendency in a foreign court** is no bar
→ bars the **trial**, not the institution or interim orders
→ object: avoid **two parallel trials** & conflicting decisions

> ***Indian Bank v Maharashtra State Co-op Marketing Fed.*** (1998) — S.10 bars trial only; summary suit decree/interim orders allowed

📌 Sub judice = pending · stay the LATER suit

Res judicata S.11

★ *Interest reipublicae ut sit finis litium* (end to litigation) + *nemo debet bis vexari* (no one vexed twice).

1. matter **directly and substantially in issue** in the former suit
2. between the **same parties** (or those claiming under them)
3. litigating under the **same title**
4. former court **competent** to try the later suit
5. **heard and finally decided**

Explanation	Rule
I	'former suit' = decided earlier, whenever filed
II	competence irrespective of appeal
III	matter alleged by one, denied by the other
IV	constructive RJ: matter which **might and ought** to have been raised
V	relief claimed but not granted = **refused**
VI	**representative suits** bind all interested
VII	applies to execution
VIII	court of limited jurisdiction

Sub judice (S.10)
pending suit · bars trial · later suit stayed

v/s

Res judicata (S.11)
decided suit · bars the suit · future protected

> ***Satyadhyan Ghosal v Deorajin Debi*** (1960)
> **story** Tenant's eviction objection decided at one stage; raised again at a later stage of the same suit.
> **held** RJ applies **between stages of the same proceeding**; an interlocutory order not appealed binds later stages.

> ***Daryao v State of U.P.*** (1961) — RJ applies to writ petitions under Art. 32/226
> ***Forward Construction Co. v Prabhat Mandal*** (1986) — constructive RJ applies to PIL (Expl. VI)
> ***Gulam Abbas v State of U.P.*** (1982) — RJ is founded on public policy; representative suits bind

📌 D-S-T-C-F: Directly · Same parties · Title · Competent · Finally decided

Other bars & foreign judgments S.12–14 · O.II r.2

→ **S.12**: plaintiff barred by rule (O.II r.2, O.IX r.9, O.XXIII) → **no fresh suit** in any court
→ **O.II r.2**: sue for the **whole claim**; omitted portion/relief is lost unless leave obtained
→ **S.13**: foreign judgment **conclusive** except — no competent court · not on **merits** · against **international/Indian law** · against **natural justice** · **fraud** · breach of Indian law
→ **S.14**: presume competence on a certified copy · **S.44A**: decree of a **reciprocating territory** executed like an Indian decree

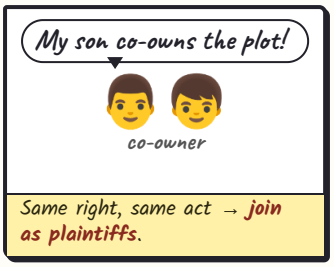
> ***Gurbux Singh v Bhooralal*** (1964) — O.II r.2 bar needs the earlier plaint on record
> ***Y. Narasimha Rao v Y. Venkata Lakshmi*** (1991) — foreign divorce decree must follow the law under which parties married

📌 S.13 exceptions: C-M-I-N-F-B

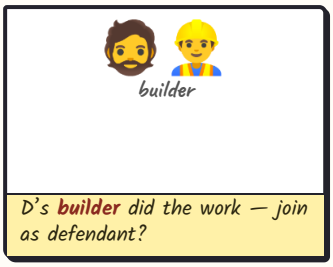
Episode 4 Who's in the Suit?

Framing the suit = right parties + whole claim + correct joinder.

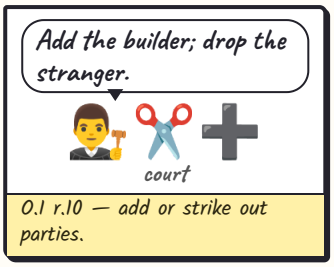
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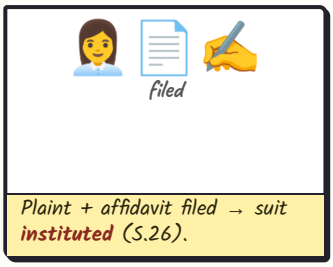
Same right, same act → **join as plaintiffs**.



D's **builder** did the work — join as defendant?



O.I r.10 — add or strike out parties.



Plaint + affidavit filed → suit **instituted** (S.26).

Parties to suits O.I

Rule	Point
1	plaintiffs may join if right to relief arises from the same act/transaction + common question of law or fact
3	defendants joined on the same test
8	representative suit; one or more sue/defend for numerous persons with the same interest, with court's permission + public notice
9	misjoinder / non-joinder doesn't defeat a suit — except non-joinder of a necessary party
10	add, strike out, substitute parties at any stage (r.10(2)) · wrong plaintiff by bona fide mistake
13	objection to joinder: at the earliest, else waived

Necessary party
no effective decree **without** him · non-joinder fatal

v/s

Proper party
presence helps decide fully · decree possible without him

Kasturi v Iyyamperumal (2005) — two tests for necessary party: right to relief + no effective decree without him
Mumbai International Airport v Regency Convention Centre (2010) — plaintiff is dominus litis; strangers not added
Razia Begum v Sahebzadi Anwar Begum (1958) — O.I r.10 discretion; direct interest needed

📌 Necessary = can't decree without · Proper = better with

Frame of suit & joinder of causes O.II

- → **r.1** include the whole claim to finally decide the dispute
- → **r.2** relinquish part → can't sue later for it; omit a relief → needs leave
- → **r.3** plaintiff may join causes of action against the same defendants
- → **r.4** with immovable property recovery only: mesne profits, breach of contract for it, related reliefs (unless leave)
- → **r.6–7** court may order separate trials · objections early

Joinder of claims: plaintiffs + defendants + causes may all be combined = multifariousness — allowed if common questions arise.

📌 Whole claim · once · join causes · land + mesne profits

Institution of suits S.26 · O.IV

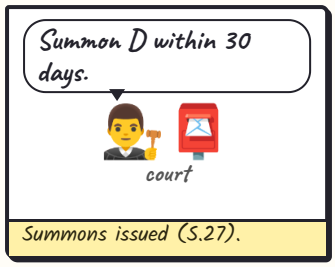
Every suit is instituted by presenting a plaint (in duplicate) to the court/officer; facts proved by affidavit (S.26(2), 2002). Entered in the register of civil suits; court fee & valuation per Court Fees and Suits Valuation Acts.

📌 Plaint + affidavit + court fee = suit instituted

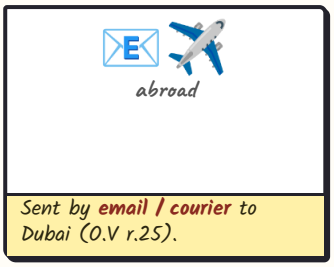
Episode 5 Summons to Dubai

No one is condemned unheard — the summons gives the defendant notice.

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Summons S.27 · O.V

Written order of the court calling the defendant to **appear and answer** the claim (and file a written statement). Issued **within 30 days** of institution (S.27).

- → signed by the judge/officer, sealed · copy of plaint attached
- → **r.2–3**: appear in person / by pleader; for final disposal or settlement of issues
- → r.4: personal appearance only if he lives within limits or nearby (50 miles; 200 by public transport)

personal / agent
r.10–12

⇩

adult family member
r.15 — not a servant

⇩

affixing
r.17 — refused/not found

⇩

court's modes
r.9: registered post, courier, fax, email

⇩

substituted
r.20: newspaper, notice board

- → refuses to accept = **deemed served** · company: via secretary, director, registered office (O.XXIX)
- → Govt servant through head of office · soldier through commanding officer · prisoner through jail
- → **S.28**: service in another State through its court

> ***Salem Advocate Bar Assn v UOI*** (2005) — courier/email service upheld; guidelines

📌 30 days · Person · Family · Fix · Fax/email · Paper

Defendant abroad & foreign summons

O.V r.25–26A · S.29

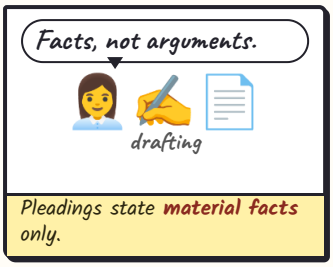
- → **r.25**: defendant **outside India** with no agent → summons by **post, courier, fax or email** to his address abroad
- → **r.26**: via a **political agent / Indian embassy**
- → **r.26A**: through the **foreign country's officer** (treaty, Hague Service Convention — India joined 2006)
- → **S.29**: summons issued by a **foreign court** (notified by Central Govt) is served in India **as if issued here**

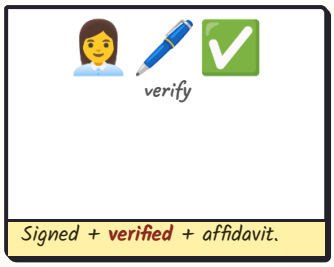
📌 D abroad: post/email · embassy · their officer · S.29 brings theirs in

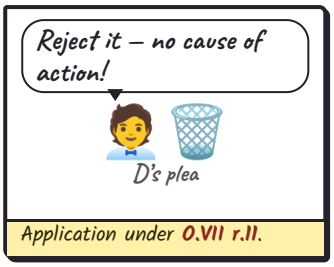
The Plaint

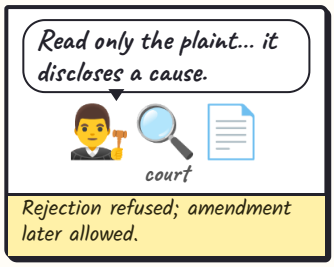
Pleadings are the foundation: the court decides only what is pleaded.

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Pleadings: meaning & rules O.VI

r.1: pleading = plaint or written statement (replication with leave).

Rule	Fundamental rule
2	state material facts only — not law, not evidence — concisely, in paragraphs, dates & sums in figures
4	fraud, misrepresentation, undue influence, breach of trust: give full particulars
6–7	condition precedent implied · no departure from earlier pleading except by amendment
8–10	denial of contract = denial of fact only · malice, knowledge stated as facts
14–15	signed by party & pleader · verified on oath (knowledge v belief) + affidavit
16	strike out unnecessary, scandalous, frivolous, vexatious, or abusive pleading

Forms of pleading: model forms in Appendix A (plaint, written statement) — used with variations.

📌 Facts · not law · not evidence · concise · signed · verified

Amendment of pleadings O.VI r.17–18

Court may allow amendment at any stage if necessary to decide the real controversy. **Proviso (2002)**: after trial begins only if despite due diligence the party couldn't raise it earlier.

→ allowed liberally before trial · costs may be imposed

→ refused: changes the nature of the suit, takes away an accrued right (time-barred claim), mala fide, prejudice not compensable by costs

→ **r.18**: not amended within the time fixed (or 14 days) → can't amend later without leave

Revajeetu Builders v Narayanaswamy (2009) — 6 factors for amendment

Ganesh Trading Co. v Moji Ram (1978) — procedure serves justice; amend liberally

Vidyabai v Padmalatha (2009) — 'trial commences' = when issues are framed; proviso is mandatory

Plaint: essentials O.VII r.1–9

1. name of the court
2. plaintiff's name, description, residence
3. defendant's name, description, residence
4. minor / unsound mind: a statement
5. facts constituting the cause of action and when it arose
6. facts showing the court has jurisdiction
7. relief claimed (r.7: specifically; general relief need not be asked)
8. set-off / relinquishment allowed
9. valuation for jurisdiction & court fee

r.2 money suits: precise amount · **r.3** immovable property: boundaries / survey numbers · **r.6** limitation exemption grounds · **r.14** documents relied on filed with the plaint (list).

Return & rejection of plaint O.VII r.10–11

Return (r.10)
filed in the **wrong court** → returned to be presented in the right one · r.10A: court fixes a date there · fresh suit there

v/s

Rejection (r.11)
plaint **thrown out** · is a **decree** · fresh plaint allowed (r.13) if cause survives

r.11 ground	Note
(a) no cause of action	read plaint alone
(b) undervalued	after time to correct
(c) insufficiently stamped	after time to pay
(d) barred by any law (limitation, S.80, RJ...)	from the plaint statements
(e) not filed in duplicate	
(f) not complying with r.9	copies, process fee

T. Arivandandam v T.V. Satyapal (1977)

story Tenant kept filing suits with clever drafting to stall eviction.

held Read the plaint meaningfully; if it's an illusion of a cause, nip it in the bud under O.VII r.11.

Saleem Bhai v State of Maharashtra (2003) — only plaint averments; written statement irrelevant

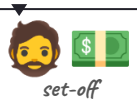
Dahiben v Arvindbhai Kalyanji Bhanusali (2020) — full principles; reject vexatious suits

Exl Careers v Frankfinn Aviation (2020) — after return, the suit begins afresh in the new court

Episode 7 D Fights Back

The defendant answers, attacks back, and the court narrows the fight into issues.

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"The wall is on MY land."	"P owes me ₹1 lakh rent!"	"P damaged my car — ₹3 lakh!"	"Try mediation first."
 written statement	 set-off	 counter-claim	 S.89
D files his **written statement** in 30 days.	**Set-off** against the money claim.	**Counter-claim**: a cross-suit.	Mediation fails → **issues framed**.

Written statement O.VIII

Defendant's pleading in reply. Filed within 30 days of service; court may extend up to 90 days for reasons (r.1). Documents relied on filed with it (r.1A).

- → **r.2** new facts: void, voidable, limitation, payment, fraud — must be pleaded specifically
- → **r.3–5** specific denial: evasive or general denial = deemed admission (except against a person under disability)
- → **r.9** later pleadings only with leave · **r.10** no WS → court may pronounce judgment or order as it thinks fit

Amendment watch

Commercial suits: WS within 120 days at the latest — mandatory (SCG Contracts v K.S. Chamankar, 2019). Ordinary civil suits: 90 days is directory (Kailash v Nanhku, 2005).

📌 30 → 90 (directory) · commercial 120 (mandatory) · deny specifically

Set-off O.VIII r.6

Defendant claims an ascertained sum of money legally recoverable from the plaintiff, in a suit for money, within the court's pecuniary jurisdiction → set-off against the claim. Same character for both parties.

Legal set-off	v/s	Equitable set-off
r.6 · **ascertained** sum · court fee paid · as of right		outside r.6 · **unascertained** but same transaction · court's discretion · no fee

Counter-claim O.VIII r.6A–6G

Defendant's independent claim against the plaintiff (any cause of action, accrued before or after the suit but before the defence is filed), within pecuniary jurisdiction. Has the effect of a cross-suit; court gives one judgment for both.

- → **6B** specifically stated · **6C** plaintiff may ask for a separate suit · **6D** survives if the suit is dismissed/withdrawn
- → **6E** plaintiff fails to reply → judgment · **6G** WS rules apply to the reply

Set-off	v/s	Counter-claim
a **shield** · money only · same nature · reduces claim		a **sword** · any claim · independent · can exceed claim

Ashok Kumar Kalra v Wg. Cdr. Surendra Agnihotri (2020) — counter-claim not after issues framed / evidence begins

Settlement outside court S.89 · O.X r.1A–1C

S.89 — 4 doors (after the first hearing, if elements of settlement exist)

Arbitration	Conciliation	Judicial settlement	Mediation
Arbitration Act 1996		incl. Lok Adalat	court-annexed

- → **O.X r.1A**: court directs the parties to choose · **1B** appear before the forum · **1C** back to court if it fails
- → court fee refunded on settlement (Court Fees Act S.16)
- → **O.X r.1–2** court examines parties at the first hearing to clarify admissions/denials

Afcons Infrastructure v Cherian Varkey Construction (2010)

story	Dispute referred to arbitration under S.89 without both parties' consent.
held	Reference to arbitration needs consent; S.89 defects explained; list of suitable / unsuitable cases.

Salem Advocate Bar Assn v UOI (2005) — S.89 valid; model ADR rules

📌 A-C-J-M · consent for arbitration · court fee back

Production & marking of documents O.VII r.14 · O.VIII r.1A · O.XI · O.XIII

- → documents relied on: filed with the pleading + list; later only with leave
- → **O.XI**: discovery by interrogatories, inspection, admission of documents
- → **O.XIII r.1** originals produced before settlement of issues · **r.4** admitted documents endorsed & marked as exhibits (Ex. P1, Ex. D1)

Framing of issues O.XIV

Issue arises when a material proposition of fact or law is affirmed by one party and denied by the other (r.1). Issues of fact and law.

- → **r.2** decide all issues; preliminary issue of law first only on jurisdiction or a bar by law · **r.3** materials: pleadings, statements on oath, documents · **r.5** amend/add/strike out issues

Absence has consequences — but the Code gives a way back for sufficient cause.

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D (in Dubai) **doesn't appear.**

"Proceed ex parte."



P proves his case alone → **ex parte decree.**

"I was in hospital!"



Application to **set aside** (O.IX r.13).

"Set aside — pay costs."



Sufficient cause → case reopened.

Appearance & non-appearance O.IX

Who appears?	Result
neither (r.3)	suit dismissed (fresh suit allowed, r.4)
summons not served due to plaintiff's default (r.2, r.5)	dismissed
only plaintiff (r.6)	court proceeds ex parte (if duly served)
only defendant (r.8)	dismissed; if claim admitted in part → decree for that part

Remedy	Who
r.4 / r.9 restore the suit	plaintiff — sufficient cause (r.9: no fresh suit on same cause)
r.7 set aside ex parte order (before decree)	defendant — good cause
r.13 set aside ex parte decree	defendant — not duly served OR sufficient cause; not for mere irregularity if he knew the date
also	appeal S.96(2) · review · (not revision)

Bhanu Kumar Jain v Archana Kumar (2005)

- **story** — Ex parte decree; defendant used both O.IX r.13 and appeal.
- **held** — Remedies are **concurrent**; but once r.13 is dismissed, appeal can't re-argue the same ground.

Sangram Singh v Election Tribunal (1955) — ex parte doesn't shut the defendant out of later hearings
G.P. Srivastava v R.K. Raizada (2000) — 'sufficient cause' read liberally

📌 Neither → dismiss · P only → ex parte · D only → dismiss · r.9 restore · r.13 set aside

Adjournments O.XVII

→ sufficient cause needed · costs for each adjournment
→ proviso: no more than three adjournments to a party during hearing
→ not on the ground of a pleader's other engagement (except reasons)
→ **r.2** party absent on the adjourned day → O.IX options · **r.3** party fails to produce evidence → court decides forthwith

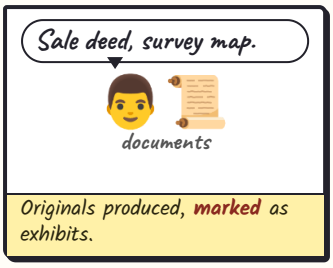
Shiv Cotex v Tirgun Auto Plast (2011) — adjournments as routine are an abuse; costs and refusal

📌 Max 3 · costs · decide forthwith if default

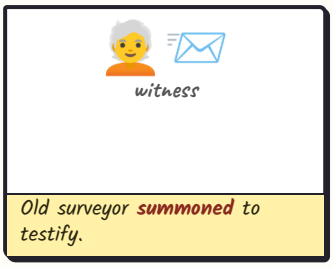
Witnesses & Papers

Proof in a civil trial: documents, witnesses, admissions, affidavits.

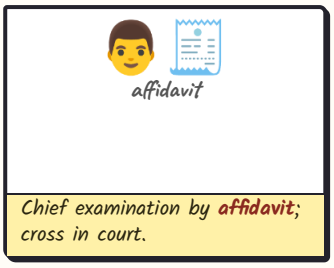
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Originals produced, **marked** as exhibits.



Old surveyor **summoned** to testify.



Chief examination by **affidavit**; cross in court.



Admission → judgment on that part (O.XII r.6).

Summoning & attendance of witnesses — O.XVI

- → **r.1** list of witnesses within 15 days of framing issues; others with leave
- → **r.2–4** expenses deposited · **r.6** summons to produce documents
- → **r.10–12** witness doesn't appear → warrant, proclamation, attachment, fine
- → **r.21** party called as a witness · **O.XVIA** prisoner witnesses

Hearing & examination — O.XVIII

right to begin (r.1: plaintiff (unless D admits facts)) → statement & evidence (r.2) → examination-in-chief affidavit (r.4) → cross & re-exam court or commissioner → arguments written too (r.2(3A))

- → evidence recorded by the judge in open court (r.5) · demeanour noted (r.12)
- → court may recall and examine a witness (r.17) · inspect property (r.18)

> ***Ameer Trading Corp. v Shapoorji Data Processing*** (2004) — evidence by affidavit + commissioner for cross: valid

Admissions — O.XII

- → **r.1** admit by pleading or in writing · **r.2** notice to admit documents · **r.4** notice to admit facts
- → **r.6** judgment on admissions — at any stage, without waiting for other issues

> ***Uttam Singh Duggal v United Bank of India*** (2000) — O.XII r.6 is to give a speedy judgment where admission is clear

Production, impounding, return of documents — O.XIII

Rule	Point
1	originals produced on or before settlement of issues
3	reject irrelevant/inadmissible documents (reasons)
4	admitted document endorsed (no., party, date, signature)
7	admitted documents part of record; others returned
8	impound (keep in court custody) for good cause — e.g. forged
9	return after time for appeal, on receipt

Affidavits — O.XIX

- → **r.1** court may order any fact proved by affidavit (cross-examination may be ordered)
- → **r.3** confined to facts within the deponent's knowledge (interlocutory: belief allowed with grounds)

📌 15 days list · affidavit chief · admit → r.6 judgment · mark · impound · return

Stop Order & the Verdict

Interim orders keep things in place; the judgment settles the dispute.

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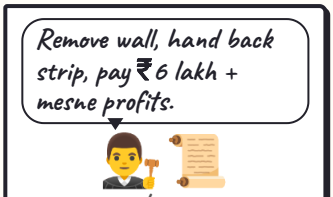
D starts a **second floor** on the strip.



Temporary injunction (O.XXXIX).



Local investigation (O.XXVI r.9).



Judgment & decree.

Temporary injunction — O.XXXIX · S.94

r.1: property in danger of being *wasted, damaged, alienated*, or defendant threatens to *dispossess* or defraud creditors.
r.2: restrain *breach of contract* or other injury.

3 tests

- **Prima facie case** — *a fair question to try*
- **Balance of convenience** — *more harm by refusing*
- **Irreparable injury** — *money can't compensate*

→ **r.3** *ex parte* injunction: record reasons; send papers to the defendant; **r.3A** decide within *30 days*
→ **r.2A** *disobedience*: attachment of property (sold after 1 year) + *civil prison up to 3 months*
→ **r.4** vary or set aside · **r.7** detention, preservation, inspection of property

> ***Dalpat Kumar v Prahlad Singh*** (1992) — three tests explained
> ***Morgan Stanley Mutual Fund v Kartick Das*** (1994) — guidelines for ex parte injunctions
> ***Gujarat Bottling Co. v Coca Cola Co.*** (1995) — conduct of the party matters; equitable relief

📌 *Prima facie · Balance · Irreparable — 30 days for ex parte*

Receivers, commissions, costs

O.XL · S.75, O.XXVI · S.35–35B

→ **Receiver (O.XL)**: court appoints to *manage, collect rents, preserve* property when 'just and convenient'; he gives security, accounts; liable for loss
→ **Commissions (S.75, O.XXVI)**: examine witnesses (r.1–8) · *local investigation* (r.9) · *accounts* (r.11) · *partition* (r.13) · *scientific* investigation (r.10A) · ministerial acts (r.10B) · sale of movables (r.10C)
→ **Costs**: S.35 — *costs follow the event* (reasons if not) · **S.35A** *compensatory costs for false/vexatious* claims (max ₹3,000) · **S.35B** costs for *causing delay*

> ***Salem Advocate Bar Assn v UOI*** (2005) — costs must be realistic, not notional

Judgment, decree, interim orders

S.33 · O.XX · S.2

→ **O.XX r.1** pronounced in open court — *within 30 days*, at most *60 days* of hearing
→ **r.4** contents: concise statement, *points for determination*, *decision*, *reasons* (small cause: points + decision)
→ **r.5** finding on *each issue* · **r.6** decree agrees with judgment; costs · **r.6A** decree drawn in *15 days* · **r.12** *mesne profits* inquiry
→ **r.18** partition: preliminary + final decree

Kind of decree	Example
Preliminary	rights declared, work remains: partition, accounts, mortgage
Final	disposes of the suit completely
Partly	part final, part preliminary (possession + mesne profits inquiry)
Deemed	rejection of plaint; S.144 determination

Interim orders & stay: injunction, receiver, attachment before judgment, stay of suit (S.10) or of execution (O.XXI r.26, O.XLI r.5).

📌 *30–60 days · points-decision-reasons · preliminary/final/partly/deemed*

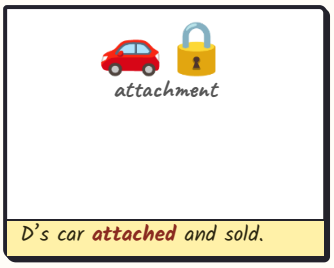
Episode 11 Making the Decree Work

A decree is just paper until it is executed.

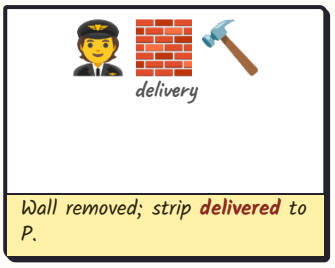
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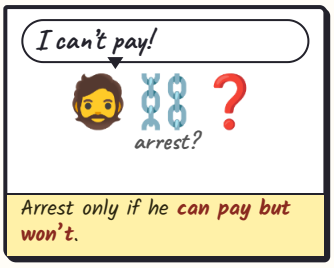
P files an **execution petition**.



D's car **attached** and sold.



Wall removed; strip **delivered** to P.



Arrest only if he **can pay but won't**.

Concept & general principles S.36–47

Execution = *enforcement of a decree or order* through the court, so the decree-holder gets what was decreed.

- executed by the *court which passed it* or to which it is *sent* (S.38) · transfer (S.39) on application or suo motu
- **S.42** transferee court has the same powers · **S.44A** foreign reciprocating decrees
- **S.47** *all questions* between parties about execution, discharge or satisfaction decided *by the executing court*, not a separate suit
- executing court *can't go behind the decree* — except a *nullity*

> ***Rahul S. Shah v Jinendra Kumar Gandhi*** (2021)
> *story* — Decree-holders waiting decades to enjoy their decree.
> *held* — ***Execution to be finished in 6 months***; 14 directions to speed up execution.

> ***Topanmal Chhotamal v Kundomal Gangaram*** (1960) — executing court can't question the decree
> ***Sunder Dass v Ram Prakash*** (1977) — a nullity decree can be resisted in execution

Procedure for execution O.XXI

application
r.10–11: oral (money, arrest) or written

⇩

notice
r.22: if > 2 years or against LR

⇩

modes
S.51

⇩

objections
r.58 claims to attachment

⇩

satisfaction

- **r.26** stay of execution pending appeal / suit · **r.97–101** resistance to delivery — adjudicated in execution
- limitation: 12 years for execution (Art. 136)

Modes of execution S.51

S.51 — five tools

- **Delivery** of property
- **Attachment & sale** or sale without attachment
- **Arrest & detention** civil prison
- **Receiver**
- **Any other** as nature needs

Arrest & detention S.55–59 · O.XXI r.37–40

- arrest at any hour, any day — but *no entering a dwelling between sunset and sunrise* · **S.56** *no woman arrested* in a money decree
- money decree: *show-cause notice* first; detention only if he *has means and refuses*, or is about to abscond
- subsistence allowance paid by decree-holder
- **S.58**: decree > ₹5,000 → up to *3 months* · ₹2,000–5,000 → *6 weeks* · ≤ ₹2,000 → *no detention*
- release doesn't discharge the debt

> ***Jolly George Varghese v Bank of Cochin*** (1980)
> *story* — Debtors jailed for a bank debt without inquiry into their means.
> *held* — Art. 11 ICCPR + ***Art. 21***: no detention merely for inability to pay; must be *wilful refusal with means*

Attachment & sale S.60–74 · O.XXI r.41–106

S.60: all saleable property attachable — *except* necessary wearing apparel, cooking vessels, beds, *tools of artisans*, agriculturist's implements & cattle, *house of agriculturist/labourer*, books of account, *right to sue for damages*, pensions, *salary: first ₹1,000 + two-thirds of the rest* (for 24 months)…

- movables: *actual seizure* (r.43) · debts: prohibitory order (r.46) · *garnishee* proceedings (r.46A–46I)
- immovables: *prohibitory order* + proclamation (r.54)
- sale by *public auction* (r.64–73) · immovable: set aside for *irregularity + substantial injury* (r.90) or deposit 5% + amount (r.89) · *certificate of sale* (r.94)
- **S.64** private transfer after attachment *void against the decree-holder*

📌 Deliver · Attach-sell · Arrest · Receiver · Other — 3 months / 6 weeks / none

Episode 12 Suing the Government & the Public

Special suits get special rules: the State, the public, and many people with one interest. more free notes → lawsticker-ai.com



Road widening: the municipality marks P's compound wall.



S.80 notice before suing the State.



Temple trust funds misused → **S.92** suit.



Open drain on the road → **public nuisance** (S.91).

Suits by or against the Government

S.79–82 · O.XXVII

- **S.79** sued in the name of Union of India / State (not the department or officer)
- **O.XXVII** plaint signed by an authorised officer; Govt pleader; extra time for WS (up to 2 months); court to try settlement (r.5B)

Notice before suit S.80

No suit against the Government or a public officer (for an official act) until 2 months after written notice is delivered — stating name, address, cause of action, relief.

- **80(2)** urgent relief: sue with leave without notice — but no relief till the Govt is heard; plaint returned if no urgency
- **80(3)** suit not dismissed for a mere technical error in the notice if the substance is clear
- object: give the State time to reconsider and settle · notice can't be waived by the court (except 80(2))
- **S.82**: decree against the Govt executed only if unsatisfied for 3 months · **S.81** no arrest/personal attendance of public officers

> ***Bihari Chowdhary v State of Bihar*** (1984) — S.80 notice is mandatory; gives a chance to settle
> ***Ghanshyam Dass v Dominion of India*** (1984) — read the notice with common sense, not hyper-technically
> ***State of A.P. v Pioneer Builders*** (2006) — S.80(2) urgency; court must hear before relief

📌 Union/State · 2 months · urgent with leave · 3 months to execute

Suits relating to public matters S.91–92 · O.1 r.8

	S.91 Public nuisance	S.92 Public trusts
Subject	public nuisance / wrongful act affecting the public	breach of an express or constructive trust for public charitable or religious purposes
Who sues	Advocate General OR two or more persons with leave	Advocate General OR two or more persons having an interest with leave
Relief	declaration, injunction, other relief	remove/appoint trustees, vest property, accounts, scheme, sale/lease…
Special damage?	not needed; private suit still possible	suit in the principal civil court of original jurisdiction

Representative suit (O.1 r.8): many persons with the same interest — one may sue or defend for all, with permission + public notice; decree binds all (S.11 Expl. VI); no compromise without notice.

> ***R. Venugopala Naidu v Venkatarayulu Naidu Charities*** (1989) — S.92 suit is a representative suit for the public, not private rights

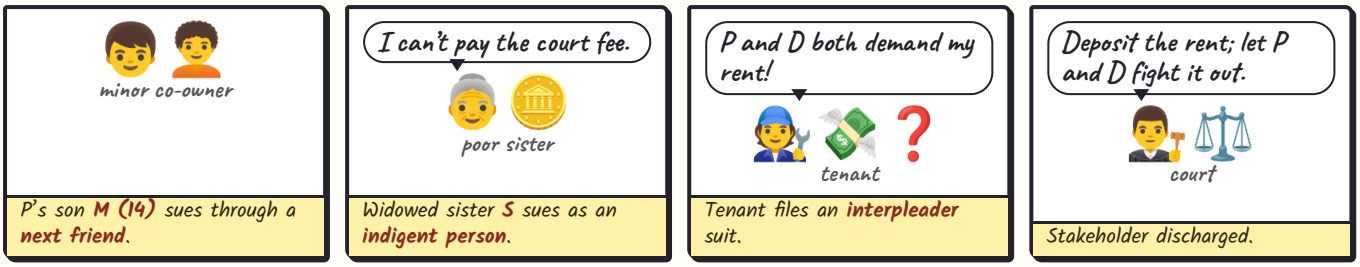
📌 91 nuisance · 92 trust · AG or 2 persons with leave

Episode 13 The Boy, the Sister, the Tenant

Unit IV · O.XXXII, O.XXXIII, S.88, O.XXXV

The Code protects those who can't fight for themselves — and the one caught in the middle.

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P's son **M (14)** sues through a **next friend**.

Widowed sister **S** sues as an **indigent person**.

Tenant files an **interpleader** suit.

Stakeholder discharged.

Suits by or against minors & persons of unsound mind O.XXXII

Rule	Point
1	minor sues through a next friend (an adult of sound mind, no adverse interest)
3	minor defendant: court appoints a guardian ad litem (for the suit)
4	any person of sound mind with no adverse interest; court officer if none
5	every application by the next friend/guardian
6–7	money received or compromise on the minor's behalf needs leave of court — else voidable against the minor
9–11	removal / retirement / death of next friend
12	minor on attaining majority elects to proceed or abandon
15	same rules for persons of unsound mind
3A	decree not set aside just because the guardian had an interest, unless prejudice

A decree against a minor without a guardian is a nullity against him.

📌 Next friend (plaintiff) · Guardian ad litem (defendant) · compromise needs leave

Suits by indigent persons O.XXXIII · O.XLIV

Indigent (r.1 Expl. 1): not possessed of sufficient means (other than exempt property & the suit property) to pay the court fee; if no fee prescribed, not entitled to property worth ₹1,000. Can be a company too.

application
r.2–3: with plaint, list of property

⇩

examination
r.4

⇩

rejection?
r.5: not indigent, no cause, fraud, transferred to get it

⇩

inquiry
r.6: evidence, Govt pleader heard

⇩

permitted
r.7: becomes the plaint

→ **r.9** dispaupered if vexatious, has means, or agreed to share the result

→ **r.10–12** court fee recovered from the result: if plaintiff wins (from the decree), loses (from him), or dispaupered

→ **r.18** State free legal services · **O.XLIV** indigent appellants

> ***Union Bank of India v Khader International Construction*** (2001) — 'person' includes a company for O.XXXIII

📌 Can't pay fee → indigent · fee recovered from the result

Interpleader suits S.88 · O.XXXV

Where two or more persons claim the same debt, money or property adversely from a third person who claims no interest except charges/costs and is ready to pay or deliver — he may file an interpleader suit to decide who is entitled.

→ **r.1** plaint: no collusion, claims made, no interest of plaintiff · **r.2** money/property deposited in court

→ **r.4** first hearing: declare plaintiff discharged with costs; claimants fight as parties

→ **r.5** agent v principal, tenant v landlord: can't interplead to make them prove title (except third-party claim through them)

→ not allowed if a suit is already pending to decide the same right

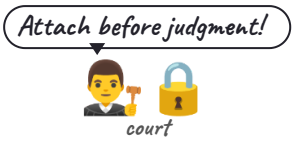
📌 Stakeholder with no interest · deposit · discharged · tenant can't question landlord

Incidental and supplemental proceedings keep the suit meaningful till the end.

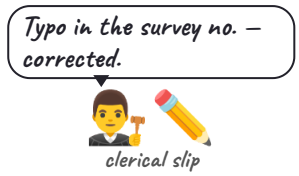
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D tries to **sell his flat** and leave India.



Attachment before judgment (O.XXXVIII r.5).



S.152 correction.



If a decree is reversed, money comes back (**S.144**).

Incidental proceedings

Part III · S.75–78 · O.XXVI

Proceedings *incidental to the suit* — *commissions* (S.75): examine witnesses, local investigation, accounts, partition, scientific investigation, ministerial acts, sale · **S.76–78** commissions to/from other courts and *letters of request* to foreign courts.

Supplemental proceedings

Part VI · S.94–95

S.94 — to prevent the ends of justice being defeated	Order
(a) **arrest before judgment** — defendant about to abscond / leave	O.XXXVIII r.1–4
(b) **attachment before judgment** — about to dispose of / remove property to obstruct execution	O.XXXVIII r.5–12
(c) **temporary injunction**	O.XXXIX
(d) **receiver**	O.XL
(e) other **interlocutory orders**	as just and convenient

→ attachment before judgment: *security* first; property released if security given (r.6); doesn't affect prior rights (r.10)

→ **S.95** compensation for *wrongful arrest, attachment or injunction* obtained on insufficient grounds — *up to* ₹50,000

Raman Tech & Process Engg. v Solanki Traders (2008)

story Plaintiff sought attachment before judgment as routine security for his claim.

held A ***drastic, extraordinary*** power; only with clear proof of *intent to obstruct* execution — not to secure every claim.

General provisions (the safety valves)

S.144–153

Section	Power
144	*restitution*: decree varied/reversed → restore parties to their position (interest, mesne profits)
148	*enlarge time* fixed by court — total *30 days* max
148A	*caveat*: person expecting an application may file; valid *90 days*; applicant must give notice
151	*inherent powers*: ends of justice / prevent abuse of process
152	correct *clerical or arithmetical* mistakes any time
153	amend any defect or error in proceedings

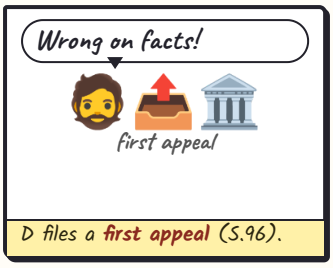
Manohar Lal Chopra v Seth Hiralal (1962) — S.151 not where the Code expressly provides; not against express provisions
Padam Sen v State of U.P. (1961) — inherent powers supplement, don't override

📌 94 arrest · attach · injunction · receiver · 95 compensation ₹50k · 144 restitution · 148A caveat 90 days

Second Chances

Appeal = rehearing · Review = second look by the same court · Revision = supervision.

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Appeals from original decrees — S.96–99A · O.XLI

- → **S.96** appeal lies from every original decree — on facts and law · ex parte decree appealable (96(2))
- → **96(3)** no appeal from a consent decree · **96(4)** small cause ≤ ₹10,000: only on law
- → **S.97** preliminary decree not appealed → can't challenge it in appeal from the final decree
- → **S.99** no reversal for misjoinder/non-joinder or irregularity not affecting merits (except necessary party)

O.XLI rule	Point
1	memorandum of appeal + copy of decree (judgment)
3A	delay application with appeal (S.5 Limitation)
5	appeal isn't a stay; stay on sufficient cause + security
11	summary dismissal after hearing appellant
22	cross-objection by respondent within 30 days of notice
23 · 23A · 25	remand · framing issues
27	additional evidence: wrongly refused / couldn't produce despite diligence / court needs it
31	appellate judgment: points, decision, reasons

S.107 powers: determine finally, remand, frame issues, take evidence — same as original court. Limitation: 90 days to HC, 30 days to District Court (Art. 116).

> ***Santosh Hazari v Purushottam Tiwari*** (2001)
> *story* — First appellate court reversed a decree without dealing with the trial court's reasons.
> *held* — First appeal is a valuable right; court must address all issues and evidence and give reasons.

📌 *Every decree → first appeal (facts + law) · not consent · 90/30 days*

Appeals from appellate decrees — S.100–103 · O.XLII

- → **S.100** second appeal to the High Court only on a substantial question of law (1976) — formulated at admission; hearing confined to it
- → **S.100A** no Letters Patent appeal from a single judge's decision in such appeals
- → **S.102** no second appeal in money suits ≤ ₹25,000 · **S.103** HC may decide facts if necessary

> ***Hero Vinoth v Seshammal*** (2006) — what is a 'substantial question of law'
> ***Santosh Hazari v Purushottam Tiwari*** (2001) — debatable, not settled; material to the decision

Appeals from orders & general provisions — S.104–112 · O.XLIII

- → **S.104 + O.XLIII r.1** only listed orders appealable (e.g. return of plaint, rejection of r.13 application, injunction, receiver, refusal to set aside dismissal) · no second appeal from orders (104(2))
- → **S.105** non-appealable orders can be challenged in the appeal against the decree
- → **S.107–108** appellate powers · **S.109** appeal to the Supreme Court (certificate: substantial question of general importance) · **S.112** Art. 136 saved

Reference & review — S.113 · O.XLVI · S.114 · O.XLVII

Reference (S.113) — subordinate court **doubts validity** of an Act/rule → states a case to the **High Court** · pending case

v/s

Review (S.114) — party asks the **same court** to re-look at its own decree/order

Review ground (O.XLVII r.1)	
discovery of new and important matter not known / producible despite diligence	
mistake or error apparent on the face of the record	self-evident, not after long argument
any other sufficient reason	analogous to the above

- → no review if an appeal has been filed · same judge if available (r.5) · no review of review order (r.9) · limitation 30 days

> ***Aribam Tuleshwar Sharma v Aribam Pishak Sharma*** (1979) — review is not an appeal in disguise
> ***Lily Thomas v UOI*** (2000) — review only for patent error

Revision — S.115

High Court may call for the record of a case decided by a subordinate court where no appeal lies, if it: (a) exercised a jurisdiction not vested, (b) failed to exercise a jurisdiction vested, or (c) acted illegally or with material irregularity.

→ **proviso (1999)**: no revision of an order unless, if decided in the applicant's favour, it would finally dispose of the suit

→ revision is not a stay · jurisdictional errors only, not errors of fact

→ Art. 227 supervisory jurisdiction still available

> **Major S.S. Khanna v Brig. F.J. Dillon** (1964) — 'case decided' includes an interlocutory order
> **Shiv Shakti Co-op Housing Society v Swaraj Developers** (2003) — 1999 proviso cuts revision of interlocutory orders
> **Radhey Shyam v Chhabi Nath** (2015) — writ of certiorari doesn't lie against civil court orders; Art. 227 does

Appeal	v/s	Revision
a **right** · facts + law · appellate court · rehearing		**discretion** of HC · jurisdiction errors only · where no appeal lies

📌 Appeal = rehearing · Review = same court, new matter/error · Revision = HC, jurisdiction · Reference = doubt on validity

Episode 16 Too Late?

Law helps the vigilant, not those who sleep over their rights.

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Concept & object of limitation

Limitation Act 1963

★ *Vigilantibus non dormientibus jura subveniunt* — law helps the vigilant · *Interest reipublicae ut sit finis litium* — litigation must end.

- fixes time limits for suits, appeals, applications (Schedule: 137 Articles; excluded from syllabus)
- bars the remedy, not the right — a time-barred debt still exists (can be paid, set off, acknowledged after expiry is useless)
- exception: S.27 — for possession of property, the right itself is extinguished after the period
- procedural law; applies to civil courts; not to writs (laches) or executive bodies unless applied

📌 Vigilant · bars remedy, not right · except S.27 (possession)

General principles: bar & extension S.3–5

- **S.3** suit after the period shall be dismissed — even if limitation isn't pleaded (court's duty)
- **S.4** period ends on a court holiday → file on reopening day
- **S.5** condonation of delay: appeals & applications (not suits, not O.XXI applications) if sufficient cause shown

Collector, Land Acquisition, Anantnag v Mst. Katiji (1987)

- *story* — State appeal 4 days late was dismissed for delay.
- *held* — Read 'sufficient cause' liberally; substantial justice over technicalities; no presumption of deliberate delay; State treated like any litigant.

N. Balakrishnan v M. Krishnamurthy (1998) — length of delay matters less than acceptability of the explanation
Esha Bhattacharjee v Managing Committee, Raghunathpur Nafar Academy (2013) — liberal but not a licence; principles listed
In Re: Cognizance for Extension of Limitation (2022) — 15.03.2020–28.02.2022 excluded (COVID)

📌 S.3 dismiss anyway · S.4 holiday · S.5 sufficient cause (not suits)

Legal disability S.6–9

- **S.6** person entitled is a minor, insane or idiot when time starts → may sue within the same period after the disability ends
- two disabilities together / one after another → after both cease · disability continues till death → legal representative gets the same period
- **S.7** one of several joint claimants under disability — if others can give a discharge, time runs against all
- **S.8** extension never beyond 3 years from cessation · not for pre-emption suits
- **S.9** once time begins to run, no later disability stops it (continuous running)

📌 Minor · Insane · Idiot · max 3 years after · once started, never stops

Computation of limitation S.12–24

Section	Excluded / effect
12	day of the starting event; time to obtain copy of decree/judgment for appeal/review
13	time spent applying for leave as an indigent person
14	time bona fide prosecuting in a wrong court (no jurisdiction or similar defect) with due diligence
15	period of stay/injunction; notice period (S.80); time a defendant is out of India
17	fraud or mistake: time runs from discovery
18	acknowledgment: fresh period
19	part-payment: fresh period
21	new plaintiff/defendant: from when added
22	continuing breach / tort: fresh period every moment
24	Gregorian calendar

Consolidated Engg. Enterprises v Principal Secy., Irrigation Dept. (2008) — S.14 read liberally to advance justice

Acknowledgment & part-payment S.18–19

Acknowledgment (S.18)
in **writing**, **signed** by the party/agent · **before expiry** · admits the liability (amount needn't be stated) · fresh period from the date signed · oral evidence of contents not allowed

v/s

Part-payment (S.19)
payment on account of a debt or interest · by the debtor/agent · **before expiry** · shown in the payer's **handwriting or writing signed** by him · fresh period from payment

> ***Shapoor Freedom Mazda v Durga Prosad Chamaria*** (1961) — acknowledgment must show a jural relationship and an intention to admit it

> 🎬 ***P's money claim***
> Loan 2021 → limit 2024 (Art. 19/21: 3 years). Email acknowledgment 2023 (before expiry) → new limit 2026. ₹50,000 paid 2024 → new limit 2027. Suit filed 2025 = in time.

Other key provisions S.25–29

- → **S.25** easements: right of way, light, air — 20 years peaceable, open, uninterrupted enjoyment (30 years against Govt)
- → **S.27** extinguishment of right to property at the end of the period for possession
- → **S.29** savings: special laws with their own periods — S.4–24 apply unless expressly excluded

3 yrs money / most contracts	**12 yrs** possession of land (Art. 65)	**30 yrs** suits by the Govt (Art. 112)	**12 yrs** execution of decree (Art. 136)
90 / 30 d appeal to HC / district	**3 yrs** residuary applications (Art. 137)	**20 yrs** easement (S.25)	**3 yrs** max extension, disability

📌 *Acknowledge before expiry, in writing, signed · pay before expiry, in writing*

The whole story in one page

Ep 0 CPC 1908: 158 sections + 51 Orders; decree / judgment / order (S.2); jurisdiction: pecuniary, territorial, subject matter.

Ep 1 D's wall + unpaid loan → suit of civil nature (S.9) unless barred (Dhulabhai); cause of action = bundle of facts.

Ep 2 Sue in the lowest court (15); land where it lies (16); money where D lives or cause arose (20); objections early (21); transfer 22–25.

Ep 3 Old boundary case → res judicata (S.11, 5 conditions, constructive RJ); pending case → sub judice (S.10).

Ep 4 Parties (O.1): necessary v proper, r.8 representative, r.10 add/strike; whole claim (O.II r.2); plaint + affidavit (S.26).

Ep 5 Summons in 30 days (S.27); modes O.V; D in Dubai → email/courier (r.25); foreign summons (S.29).

Ep 6 Pleadings: facts not law (O.VI r.2); amendment (r.17 + due diligence); return (O.VII r.10) v rejection (r.11).

Ep 7 WS 30→90 days; set-off (shield) v counter-claim (sword); S.89 mediation; documents; issues (O.XIV).

Ep 8 D absent → ex parte (O.IX r.6) → set aside (r.13) for sufficient cause; max 3 adjournments (O.XVII).

Ep 9 Witness list in 15 days; chief by affidavit; judgment on admission (O.XII r.6); documents marked, impounded, returned.

Ep 10 Injunction (3 tests); commissioner measures land; receiver; costs follow the event; judgment in 30–60 days; decree.

Ep 11 Execution; S.47 questions; S.51 modes; arrest only if able but unwilling (Jolly George); attachment & sale (S.60 exemptions).

Ep 12 Road widening → S.80 notice (2 months); temple trust → S.92; drain → S.91; many people → O.1 r.8.

Ep 13 Minor M → next friend / guardian ad litem; poor sister → indigent (O.XXXIII); tenant → interpleader (S.88).

Ep 14 D selling flat → attachment before judgment (S.94); S.95 compensation; S.144 restitution; S.151 inherent powers.

Ep 15 First appeal (S.96, facts + law); second appeal (S.100, substantial question of law); review (S.114); revision (S.115).

Ep 16 Loan 2021, acknowledged 2023 (S.18), part-paid 2024 (S.19) → suit in time; late appeal → S.5 condonation.

Numbers to remember

1908 CPC enacted	**158 · 51** sections · Orders	**30 days** summons to issue	**30 → 90** written statement
120 days WS, commercial	**15 days** witness list	**3** adjournments max	**30 → 60** judgment days
30 days ex parte injunction decided	**3 months** civil prison, O.XXXIX r.2A	**2 months** S.80 notice	**3 months** execute vs Govt (S.82)
₹50,000 S.95 compensation	**₹3,000** S.35A costs	**90 days** caveat (148A)	**₹25,000** no 2nd appeal (S.102)
3 m · 6 w detention (S.58)	**3 yrs** money suits	**12 yrs** possession · execution	**30 yrs** Govt suits

Latin card

Res judicata — a matter already decided

Res sub judice — a matter under judgment (pending)

Interest reipublicae ut sit finis litium — in the State's interest that litigation ends

Nemo debet bis vexari pro una et eadem causa — no one vexed twice for the same cause

Vigilantibus non dormientibus jura subveniunt — law helps the vigilant, not the sleeping

Ubi jus ibi remedium — where there is a right, there is a remedy

Actus curiae neminem gravabit — act of court harms no one (S.144)

Dominus litis — master of the suit — the plaintiff

Ex parte — in the absence of one side

Lis pendens — pending suit (TP Act S.52)

Guardian ad litem — guardian for the suit

Functus officio — court's task done

Provision finder

Topic	Section / Order
Suits of civil nature	S.9
Sub judice	S.10
Res judicata	S.11
Foreign judgment	S.13–14
Place of suing	S.15–20
Objections	S.21
Transfer	S.22–25
Institution	S.26, O.IV
Summons	S.27–29, O.V
Parties	O.I
Frame of suit	O.II
Pleadings	O.VI
Plaint	O.VII
Written statement · set-off · counter-claim	O.VIII
ADR	S.89, O.X
Issues	O.XIV
Appearance / ex parte	O.IX
Witnesses	O.XVI
Hearing	O.XVIII
Admissions	O.XII
Documents	O.XIII
Affidavits	O.XIX
Adjournments	O.XVII
Judgment & decree	S.33, O.XX
Injunctions	O.XXXIX
Receivers	O.XL
Commissions	S.75, O.XXVI
Costs	S.35–35B
Execution	S.36–74, O.XXI
Govt suits	S.79–82, O.XXVII
Public matters	S.91–92
Minors	O.XXXII
Indigent	O.XXXIII
Interpleader	S.88, O.XXXV
Before judgment	S.94, O.XXXVIII
Appeals	S.96–112, O.XLI–XLIII
Reference	S.113, O.XLVI
Review	S.114, O.XLVII
Revision	S.115
Restitution · caveat · inherent	S.144 · 148A · 151

Test yourself

MCQs

1. Order which conclusively determines rights in the suit is a
(a) judgment · (b) decree · (c) order · (d) ruling

2. Constructive res judicata is in
(a) S.10 · (b) S.11 Expl. IV · (c) S.12 · (d) O.11 r.2

3. A suit for immovable property is filed where
(a) plaintiff lives · (b) defendant lives · (c) property is situated · (d) anywhere

4. Transfer of a suit from one State to another is by the
(a) High Court · (b) District Court · (c) Supreme Court · (d) Govt

5. Rejection of a plaint is under
(a) O.VII r.10 · (b) O.VII r.11 · (c) O.VI r.16 · (d) O.IX r.13

6. Notice before suing the Government is under
(a) S.79 · (b) S.80 · (c) S.82 · (d) S.91

7. Second appeal lies only on
(a) facts · (b) mixed questions · (c) substantial question of law · (d) costs

8. Interpleader suit is under
(a) S.88 · (b) S.92 · (c) S.94 · (d) S.144

9. Condonation of delay is under Limitation Act section
(a) 3 · (b) 5 · (c) 14 · (d) 18

10. A caveat remains in force for
(a) 30 days · (b) 60 days · (c) 90 days · (d) 1 year

Fill in the blanks

1. Inherent powers of a civil court: S.___.

2. Ex parte decree set aside under O.IX r.___.

3. Temporary injunction disobedience: civil prison up to ___ months.

4. Liberal view of 'sufficient cause': ___ (1987).

5. No detention merely for inability to pay: ___ (1980).

6. Exclusion of civil court jurisdiction principles: ___ (1968).

7. Restitution is in S.___.

8. Acknowledgment of liability: Limitation Act S.___.

9. Judgment on admissions: O.XII r.___.

10. Rights of possession extinguished: Limitation Act S.___.

Short answers (plan)

1. Res judicata v res sub judice.
S.11 decided v S.10 pending; bars suit v bars trial; conditions; Satyadhyan Ghosal; constructive RJ (Ep 3).

2. Set-off v counter-claim.
O.VIII r.6 v 6A–6G; shield v sword; ascertained money v any claim; Ashok Kalra (Ep 7).

3. Return v rejection of plaint.
O.VII r.10 wrong court v r.11 six grounds; rejection = decree; T. Arivandandam (Ep 6).

4. Temporary injunction.
O.XXXIX r.1–2; three tests; ex parte r.3, 30 days r.3A; disobedience r.2A; Dalpat Kumar (Ep 10).

5. Modes of execution; arrest & detention.
S.51 five modes; S.55–58; woman exempt; means test — Jolly George; S.60 exemptions (Ep 11).

6. S.80 notice.
2 months; contents; urgent leave 80(2); technical errors 80(3); Bihari Chowdhary (Ep 12).

7. Appeal, review, revision compared.
S.96/100 v S.114 v S.115; grounds; who hears; 1999 proviso (Ep 15).

8. Acknowledgment & part-payment.
S.18 written, signed, before expiry; S.19 payment + writing; fresh period; example (Ep 16).

Answers

MCQ: 1-b · 2-b · 3-c · 4-c · 5-b · 6-b · 7-c · 8-a · 9-b · 10-c

Fill-ups: 1. 151 · 2. 13 · 3. 3 · 4. Collector, Anantnag v Mst. Katiji · 5. Jolly George Varghese · 6. Dhulabhai · 7. 144 · 8. 18 · 9. 6 · 10. 27

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